

himself, denying the title of his companion, or refusing to permit him to enter.' [Citation.] 'Whether there has been an ouster is a legal question.' [Citation.]" (*Hacienda Ranch Homes, supra*, 198 Cal.App.4th 1122, 1128 (emphasis added); *Zaslow v. Kroenert* (1946) 29 Cal.2d 541, 548 (accord).)

Here Beltran's evidence shows she and Martinez purchase the property as joint tenants in January 2018. (Beltran dec. ¶5.) Martinez paid \$10,000 towards the down payment and assisted Beltran in qualifying for a loan. (Beltran dec. ¶6.) In February 2018, the parties ended their relationship and since then Beltran has solely and exclusively possessed and occupied the property. (Beltran dec. ¶7.) Since February 2018, Beltran has paid all mortgage payments, taxes payments and all capital improvements on the property. (Beltran dec. ¶¶10-14.) This evidence shows that there is at least a triable issue on items 1, 4 and 5 for adverse possession.

As to hostile use and notice, Beltran declares that since February 2018 she has excluded Martinez from the property and that he never sought to occupy, use or exercise possessory rights over the property. (Beltran dec. ¶8.) She also declares that in June 2020, Martinez came to the property in search of his tools. He requested permission to enter the home and Beltran refused to allow him to enter. Martinez did not attempt to enter the property and did not contest Beltran's possession or control of the property. (Beltran dec. ¶8.1.)

Here, there is a triable issue as to whether Beltran denied Martinez access to the property in June 2020 (more than five years before this complaint was filed). Refusing to permit Martinez to enter the property is sufficient to show ouster, which raises a triable issue as to items 2 and 3 for adverse possession.

Therefore, the Court finds that there is a triable issue of material fact as to adverse possession and denies Martinez's motion.

6. 9:00 AM CASE NUMBER: C25-03533
CASE NAME: IKONISYS, INC VS. LUIS LUZURIAGA
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: BIOCARE MEDICAL LLC
TENTATIVE RULING:

As the Court was informed the parties have settled, this matter is taken off calendar.

7. 9:00 AM CASE NUMBER: C25-03533
CASE NAME: IKONISYS, INC VS. LUIS LUZURIAGA
***HEARING ON MOTION IN RE: STRIKE**
FILED BY: BIOCARE MEDICAL LLC
TENTATIVE RULING:

As the Court was informed the parties have settled, this matter is taken off calendar.

8. 9:00 AM CASE NUMBER: C25-03533
CASE NAME: IKONISYS, INC VS. LUIS LUZURIAGA
*HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS FOR LACK OF PERSONAL JURISDICTION
FILED BY: LUZURIAGA, LUIS DE
TENTATIVE RULING:

As the Court was informed the parties have settled, this matter is taken off calendar.

9. 9:00 AM CASE NUMBER: C25-03533
CASE NAME: IKONISYS, INC VS. LUIS LUZURIAGA
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: LUZURIAGA, LUIS DE
TENTATIVE RULING:

As the Court was informed the parties have settled, this matter is taken off calendar.

10. 9:00 AM CASE NUMBER: C26-00456
CASE NAME: SEBRION MCHENRY-STEWART VS. JESSE GILLESPIE
*HEARING ON MOTION IN RE: SUBSTITUTED SERVICE BY EMAIL
FILED BY:
TENTATIVE RULING:

The Motion for Substituted Service by email was resolved by ex parte motion.

11. 9:00 AM CASE NUMBER: C26-00882
CASE NAME: RIKKI NEAL VS. LUCKY SUPERMARKETS, AN UNKNOWN ENTITY
*HEARING ON MOTION IN RE: AN ORDER NUNC PROTUNC CORRECTING AN EFILING ERROR OF THE FILING DATE OF THE SUMMONS AND COMPLAINT
FILED BY: NEAL, RIKKI
TENTATIVE RULING:

Plaintiff Rikki Neal has filed a Motion for an Order Nunc Pro Tunc Correcting an E-Filing Error of the Filing Date of the Summons and Complaint. Defendant Food Maxx has not yet been served, and the Defendants SaveMart and Lucky Supermarkets have been served but have not filed responsive pleadings. The Motion is therefore unopposed.

Waiting until the last minute, Neal attempted to file his initiating documents on the last day before the close of the statute of limitations, March 12, 2026. He has filed declarations that his attorney send the documents to CalWest to efile on March 12, 2026. CalWest declares that "it submitted them electronically to the Court for filing on March 12, 2026." The document attached as proof does not